

WITHOUT PREJUDICE SAVE AS TO COSTS

LETTER OF SETTLEMENT OFFER

Ref: PSL/MCP/NLI/2023/0981 Date: 12 October 2023

TO: Nova Logistics International PLC, Attention: General Counsel

FROM: Pearson Specter Litt LLP on behalf of Meridian Capital Partners LLP

Our client Meridian Capital Partners LLP has instructed us to put forward the following settlement proposal in full and final resolution of the proceedings in Case No. HC-2024-003812.

TERMS OF OFFER

1. Payment by the Defendant to the Claimant of the sum of £280,000 (two hundred and eighty thousand pounds sterling) within 21 days of acceptance of this offer.
2. The Defendant to provide a written undertaking that it will implement an improved cargo tracking and insurance protocol for all future shipments exceeding £50,000 in declared value.
3. Each party to bear its own costs up to the date of settlement, save that the Defendant shall contribute £15,000 toward the Claimant's legal costs.

This offer is open for acceptance until 17:00 (GMT) on 26 October 2023, after which it shall automatically lapse.

EXHIBIT A — INVOICE SUMMARY (SCANNED COPY)

Invoice No: [UNCLEAR] Vendor: [PARTIALLY ILLEGIBLE] Electronics Ltd

Line items: 12 x Commercial Display Units @ £87,500 per unit = [UNCLEAR TOTAL]

Shipping instruction ref: [UNCLEAR] Dispatch confirmed: [DATE UNCLEAR]

Customs declaration: HS Code [UNCLEAR] — Commercial electronics, not for resale. Country of origin: [PARTIALLY ILLEGIBLE]. Declared value for customs: USD [UNCLEAR].

[REMAINDER OF PAGE ILLEGIBLE — PHYSICAL DAMAGE TO ORIGINAL DOCUMENT]

CHRONOLOGY OF COMMUNICATIONS

14 Mar 2023: Agreement executed. Both parties sign logistics contract.

28 Mar 2023: Defendant confirms collection slot at Heathrow for 2 April.

2 Apr 2023: Consignment collected by Defendant. AWB issued.

15 Apr 2023: Claimant requests status update. Defendant advises 'in transit'.

20 Apr 2023: Claimant emails Defendant re: missed delivery deadline.

27 Apr 2023: Formal breach notice sent via solicitors.

10 May 2023: Defendant responds: delay due to Dubai port congestion.

15 Jun 2023: Partial delivery received. 3 units confirmed missing.

3 Aug 2023: Letter before action sent.

1 Sep 2023: Claim issued in High Court.

12 Oct 2023: This settlement offer sent.

Notable gaps: Insurance policy documentation not provided. Cargo manifest for missing 3 units not located in file. Witness statement from warehouse operative pending.